

Court No. - 40

Case :- WRIT - C No. - 39070 of 2022

Petitioner :- Sahid Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Uttam Kumar, Parmeshwar Yadav

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Ajit Singh, J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent nos. 2, 3 and 4 prays for and is granted ten days' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within three days thereafter.

List this case in top 10 cases as fresh on 22.2.2023.

Assignment, if any, stands discharged.

Order Date :- 2.2.2023

Faridul

Court No. - 3

Case :- WRIT - C No. - 39070 of 2022

Petitioner :- Sahid Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Uttam Kumar, Parmeshwar Yadav

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari, Pankaj Srivastava

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard learned counsel for the parties.

This writ petition has been filed praying for the following relief:-

"i. Issue a writ, order or direction in the nature of mandamus directing the respondent 3 to continue electricity supply of the petitioner in pursuance of Electricity connection/account number 741805200960."

In paragraph 2 of the counter affidavit, the respondents have stated that the petitioner was having an electricity connection bearing no. 751739578830 dated 01.05.1990 and there are dues of Rs. 1,81,843/- against the petitioner, but suppressing this fact the petitioner has obtained another electricity connection under *Saubhagya Yojana* bearing electricity connection account no. 741805200960 and when this fact came to the knowledge of the respondents the electricity supply was disconnected.

Para 4.35 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as 'the Code, 2005'), provides the procedure for disconnection of supply. Para 4.36 of the Code, 2005 provides for temporary disconnection in the circumstances, the electricity bills or any other sum other than a charge for electricity are not paid. Para 4.38 of the Code, 2005 provides for permanent disconnection; Para 4.39 provides for procedure for reconnection. Para 6.5 of the Code, 2005 enables a consumer to raise his grievances regarding disputed bills and arrears and Para 6.15 of the Code, 2005 provides for recovery of arrears.

In the present set of facts, the respondents could not state in the counter affidavit that the alleged arrears of Rs. 1,81,843/- relating to electricity connection no. 751739578830 (date of connection 01.05.1990) relates to which period. The new connection was taken by the petitioner on 28.7.2018.

Since some disputed questions of fact are involved, therefore, we **dispose of** this writ petition giving liberty to the petitioner to raise all his disputes before the respondent no.2-Executive Engineer, Purvanchal Vidhyut Vitran Khand Limited Prayagraj, District-Prayagraj within three weeks from today along with certified copy of the instant order. In the event, such a representation/objection is made, the respondent no.3 shall decide the same, in accordance with law, within next three weeks, after affording reasonable opportunity of hearing to the petitioner.

It is made clear that we have not expressed any opinion on the merits of the case of the petitioner.

Order Date :- 1.3.2023

Kirti